

Court No. - 21

Case :- WRIT - C No. - 1909 of 2023

Petitioner :- Surjan Singh

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Sita Ram Yadav

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has challenged the demand notice dated 10.2.2022 issued by respondent no. 6 requiring him to pay a sum of Rs. 8,14,178/- towards arrears of electricity charges.

Learned counsel for the petitioner submits that the demand is illegal and that the respondents have not served any provisional assessment order on him.

Learned counsel for the respondent Corporation is not present.

Having regard to the facts of the case, we dispose of the instant petition with liberty to the petitioner to file objection along with true attested copy of the instant order before respondent no. 6 within fifteen days from today and in which event, respondent no. 6 will decide the objections strictly in accordance with the procedure prescribed under the Electricity Supply Code in relation to the assessment proceedings in cases of unauthorized consumption of electricity.

Until the objections are decided, no coercive action shall be taken against the petitioner.

If the petitioner fails to file objection within fifteen days from today, as provided above, the instant order will lapse automatically and it shall become open to the respondents to proceed further in the matter in accordance with law.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.1.2023/Jaideep/-